

As the Court of Appeal has observed, there is "[a] recurrent theme in the family law opinions of this court ... disfavoring ... civil actions which are really nothing more than reruns of a family law case. [These decisions] all stand for the central idea that family law cases should not be allowed to spill over into civil law, regardless of whether the family law matter may be characterized as an action for fraud ..., malicious prosecution ..., or securities law violations... Almost all events in family law litigation can be reframed as civil law actions if a litigant wants to be creative with various causes of action. It is therefore incumbent on courts to examine the substance of claims, not just their nominal headings." (*Neal v. Superior Court* (2001) 90 Cal.App.4th 22, 25.)

The parties here are involved in a pending dissolution and custody matter in the Family Law Division of this Court, Case No. D23-04556. The present action arises out of the same marital relationship and parenting disputes that have been repeatedly addressed in those proceedings, during essentially the same period of conflict. Whatever heading Plaintiff places on his claims, the substance of this action appears to be a rerun of the family law case.

Disposition

Plaintiff has neither requested leave to amend nor offered any argument as to how the defects in the complaint could be cured by amendment. (*Churchman v. Bay Area Rapid Transit Dist.* (2019) 39 Cal.App.5th 246, 252.) Therefore, the demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**.

17. 9:00 AM CASE NUMBER: L23-01676
CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. NICOLE MUNOZ
***HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT JUDGMENT**
FILED BY:
TENTATIVE RULING:

Defendant and judgment debtor Nicole L Munoz ("Defendant") filed a Motion to Set Aside Default Judgment on January 20, 2026 (the "Motion to Set Aside"). The Motion to Set Aside was set for hearing on April 13, 2026. The motion is opposed.

Background

Plaintiff Jefferson Capital Systems LLC ("Plaintiff") filed a Complaint on April 5, 2023. A default was entered against Defendant on February 9, 2024. Thereafter, a default money judgment was entered on May 13, 2024 in the total amount of \$13,092.24 (the "Judgment").

Analysis

1. Purported Lack Of Proof Of Service

The Court first addresses the contention that the default and Judgment should be set aside because of the lack of service. Defendant contends that Defendant was "never properly served." See Memorandum of Points and Authorities, Motion to Set Aside, p. 3. Defendant contends because of such lack of service and actual notice of the lawsuit, the default and Judgment are void, including

pursuant to Code of Civil Procedure section 473(d).

Defendant's supporting declaration states that Defendant moved out of the 312 N Wildwood address in Hercules, California (the "Wildwood Address"), "on or about March 2021, which was before the date of service stated in the Proof of Service. I did not reside there, receive mail there, or maintain it as my dwelling at the time of the alleged service." Declaration of Nicole Munoz filed January 20, 2026 ("Supporting Declaration") ¶¶3-4.

2. Defendant Fails To Demonstrate That Defendant Did Not Have Actual Notice Of The Pending Lawsuit and Relief on Such Grounds is Time Barred in Any Event.

The underlying Proof of Service was filed on May 1, 2023. See Proof of Service filed May 1, 2023 (the "Proof of Service"). It reflects substituted service on Defendant on April 29, 2023 at 6:29 pm. See Proof of Service, ¶5.a.

The service was done by a registered process server. See *id.* at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

First, Defendant offers no corroborating evidence to establish that she was no longer residing at the Wildwood Address as of April 2023. Other than the bare assertions of that fact, there was nothing further offered, such as billing statements showing Defendant's name in connection with a different address around that time period.

Indeed, Defendant's Supporting Declaration does not even identify what the new residence address was at the time. Nor does Defendant give the Court more context regarding the supposed move out in March 2021 or explain the relationship to the Wildwood Address and any other people living there in the relevant time periods.

Second, to the extent that motion contends that the original Judgment is void because of a lack of actual notice, such relief is time barred.

Relief under Code of Civil Procedure section 473.5 has certain time limits. See Code Civ. Proc. § 473.5(a) ("The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered."). Defendant's motion was brought more than two years after the entry of the subject Default Judgment.

However, longer time limits apply here. Civil Code section 1788.61 provides that "[n]otwithstanding Section 473.5 of the Code of Civil Procedure, if service of a summons has not resulted in actual notice to a person in time to defend an action brought by a debt buyer and a default or default judgment has been entered against the person in the action, the person may serve and file a notice of motion and motion to set aside the default or default judgment and for leave to defend the action." Civ. Code § 1788.61(a)(1). This statute contains longer outside time limits. See *id.* at § 1788.61(a)(2) [relief must be sought within a reasonable time, but in no event

exceeding the earlier of: (a) six years after entry of the default or default judgment against the person or (b) one hundred eighty days of the first actual notice of the action]. These longer time periods only apply in cases involving a plaintiff “debt buyer.”

A “Debt buyer” means a person or entity that is regularly engaged in the business of purchasing charged-off consumer debt for collection purposes, whether it collects the debt itself, hires a third party for collection, or hires an attorney-at-law for collection litigation. Civ. Code § 1788.50(a). “Debt buyer” does not mean a person or entity that acquires a charged-off consumer debt incidental to the purchase of a portfolio predominantly consisting of consumer debt that has not been charged off. *Id.* The record here is sufficient to establish that Plaintiff is a “debt buyer” within the meaning of Civil Code section 1788.61. Plaintiff’s own allegations include that it is not the originator of the subject debt but purchased the account from the originator and that Plaintiff is a debt buyer as defined by California Civil Code section 1788.50(a). See Complaint filed April 5, 2023, ¶19.

The Court finds that Defendant failed to seek relief within a reasonable time, not exceeding the earlier of: (a) six years after entry of the default or default judgment or (b) one hundred eighty days of the first actual notice of the action. Defendant had written notice of the entry of the Judgment by at least December 2024 and failed to bring this motion within 180 after service of post judgment collection papers. See Declaration of Flint C. Zide filed March 11, 2026. Defendant failed to demonstrate that Defendant never received any mailings sent to the Wildwood Address. And even if that were the case, Defendant admits that Defendant “first learned of this case only recently, after notifying [sic] wage garnishment deductions on [Defendant’s] pay stubs beginning in or around December 2024.” Supporting Declaration, ¶17.

Thus, Defendant’s first actual notice of the action was no later than December 2024, considerably more than 180 days before Defendant filed this motion.

3. Defendant Fails To Demonstrate That The Underlying Judgment Is Void Or Should Otherwise Be Set Aside.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v.*

Westphal (1942) 20 Cal.2d 393, 397.

As discussed at length above, the evidence proffered by Defendant does not establish any grounds for the Court to conclude that the default or the default Judgment entered are somehow void. No extrinsic fraud or mistake is shown by the proffered evidence.

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside is DENIED.
2. The Court shall enter the order after hearing.

18. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: TAX COSTS IN RE CROSS-DEFENDANT SALVACION GULINGAN'S**

MEMORANDUM OF COSTS

FILED BY: SU, YING ZHONG

TENTATIVE RULING:

Defendants and Cross-Complainants Ying Zhong Su, Ziwen Yao and Rachel Xinqi Su ("Defendants") filed a Motion to Tax Costs on November 25, 2025 (the "Motion to Tax Costs") directed to the Memorandum of Costs filed by cross-defendant Salvacion Gulingan ("Gulingan") on November 14, 2025. The Motion to Tax Costs was initially set for hearing on April 6, 2026. The Motion to Tax Costs was continued by the Court for hearing on April 13, 2026. The motion is opposed.

Background

A judgment was entered in this action on November 13, 2025 (the "Judgment"). The Judgment included a money judgment in favor of plaintiff and cross-defendant Gulingan as against all of the Defendants. The Judgment determined that costs were to be awarded to plaintiff against Defendants upon post-trial request.

A Memorandum of Costs and supporting materials was filed referencing "Cross-Defendant Salvacion Gulingan" on November 14, 2025 (the "**Memo of Costs One**"). This Memo of Costs seeks a total of \$28,120.84 for various categories of specific costs.

A second Memorandum of Costs and supporting materials was filed referencing "SALVACION GULINGAN" on November 14, 2025 (the "**Memo of Costs Two**"). This Memo of Costs seeks a total of \$13,620.07 for various categories of specific costs.

The Motion to Tax Costs is supported by the Declaration of Lubna Jahangiri filed November 25, 2025 with the Motion to Tax Costs (the "Supporting Declaration"), followed by a supplemental Declaration filed December 1, 2025 (the "Supp. Supporting Declaration").

Plaintiff filed an Opposition on December 4, 2025, along with the Declaration of Alberto Reyna ("Reyna Decl. re Costs").